



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2772: license; driver; nonoperating; medical indicia

POWELL FLOOR AMENDMENT

1. Requires the Arizona Department of Transportation (ADOT) to provide on each driver license or nonoperating identification license (license) a space where a licensee may indicate the licensee suffers from some type of adverse medical condition using a medical *indicator*, rather than a medical code.
2. Removes the requirement for ADOT to prescribe by rule, a medical code to identify the medical conditions using a system of numerals or letters commonly accepted by the medical profession.
3. Eliminates the ability for a person, to affirmatively request in writing, that they want the medical code as part of the computer record.
4. Tasks a person, who indicates that they have some type of adverse medical condition using a medical *indicator* on their license, with affirming to ADOT at each license renewal, that the indicator remains in effect for the licensee.
5. Mandates ADOT with providing space on a license to indicate an advanced health care directive including a health care power of attorney, a living will or a mental health care power of attorney.
6. Repeals the rules and requirement for ADOT to prescribe an orange symbol to indicate a prehospital medical care directive on a license.
7. Prevents ADOT from maintaining any document relating to the adverse medical condition in their computer records after issuing the license, except for the purpose of indicating the symbol on the license.
8. Exempts ADOT from liability for damages from the use of *indicator information* provided on a license, rather than the medical code or prehospital medical care directive information.
9. Adds *any civilian bystanders* who make a good faith effort to identify a patient and who rely on a medical *indicator*, rather than an orange symbol, from exemption of liability.
10. Redefines *medical or disability information*.
11. Contains a legislative intent clause and a delayed effective date of January 1, 2027.
12. Makes conforming changes.

LUCA MALDOVAN

3/2/2026

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POWELL SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2772

I move the following SUBSTITUTE amendment to the TRANSPORTATION & INFRASTRUCTURE Committee
Amendment to
HOUSE BILL 2772 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 28-440, Arizona Revised Statutes, is amended
3 to read:

4 28-440. Definitions

5 In this article, unless the context otherwise requires:

6 1. "Bulk records" means multiple records that are retrieved
7 collectively from the department's database as a result of a single
8 request. Bulk records does not include retrieving one record at a time
9 from a single request.

10 2. "Duplicate" means a counterpart produced by any of the
11 following:

12 (a) The same impression or from the same matrix as the original.

13 (b) Means of photography, including enlargements and miniatures.

14 (c) Mechanical or electronic rerecording.

15 (d) Chemical reproduction.

16 (e) Any other equivalent technique that accurately reproduces the
17 original.

18 3. "Electronic signature" means an electronic sound, symbol or
19 process attached to or logically associated with a document and executed
20 or adopted by a person with the intent to sign the document.

21 4. "Express consent" means consent in writing, including consent
22 that is conveyed electronically and that bears an electronic signature.

23 5. "Highly restricted personal information" means an individual's
24 photograph or image, social security number and medical or disability
25 information.

26 6. "Insurance support organization" has the same meaning prescribed
27 in section 20-2102.

1 7. "Medical or disability information" means a restriction or
2 medical ~~[code]~~ [INDICATOR] placed on a person's motor vehicle record
3 pursuant to section 28-3159, subsection A, paragraph 1 or section 28-3167.

4 8. "Motor vehicle record" means any record that pertains to a
5 driver license or permit, vehicle registration, vehicle title or
6 identification document issued by the department or its duly authorized
7 third parties, agents or contractors that are authorized to issue any of
8 those documents.

9 9. "Opt in" means a customer of the department has provided express
10 consent to the department to allow the release of the customer's personal
11 information, including highly restricted personal information, in a form
12 prescribed by the director.

13 10. "Original":

14 (a) Of a record means the record itself or any counterpart intended
15 to have the same effect by the person executing or issuing it.

16 (b) Of a photograph means the negative or a print from the
17 negative.

18 (c) Of data stored in a computer or similar device means a printout
19 or other output that is readable by sight and that is shown to reflect the
20 data accurately.

21 11. "Personal information" means information that identifies an
22 individual and that includes an individual's photograph, social security
23 number, driver identification number, name, address, telephone number and
24 medical or disability information. Personal information does not include
25 an individual's five-digit zip code and information about vehicular
26 accidents, driving violations and driver status.

27 12. "Photographs" includes still photographs, x-ray films,
28 videotapes, motion pictures and digitized electronic images.

29 13. "Records" has the same meaning prescribed in section 41-151.

30 14. "Vehicle history report" means a report that is developed to
31 track the registration and total loss history of a particular vehicle and
32 includes odometer readings and brand codes, title brand codes and any
33 related vehicle data. Vehicle history report does not include names and
34 addresses.>>

35 Sec. 2. Section 28-3167, Arizona Revised Statutes, is amended to
36 read:

37 28-3167. Indicator information on license; health care
38 directive; living wills; immunity

39 A. The department shall provide on each driver license and on each
40 nonoperating identification license a space where a licensee may indicate
41 that the licensee suffers from some type of adverse medical condition
42 using a medical ~~[code prescribed by the department]~~ [INDICATOR] if the
43 licensee presents a signed statement from a physician who is licensed
44 pursuant to title 32, chapter 13, 14 or 17 or a registered nurse
45 practitioner who is licensed pursuant to title 32, chapter 15 stating that
46 the person suffers from the condition.

1 B. ~~[The department shall prescribe by rule a medical code to~~
2 ~~identify the medical conditions using a system of numerals or letters~~
3 ~~commonly accepted by the medical profession.]~~ Except for the purposes of
4 entering the medical ~~[code]~~ [INDICATOR] on the driver license or
5 nonoperating identification license~~[, and unless the person affirmatively~~
6 ~~requests in writing that the person wants the medical code as part of the~~
7 ~~computer record,]~~ the department shall not maintain the medical ~~[code]~~
8 [INDICATOR] in the department computer after the department issues the
9 driver license or nonoperating identification license. [THE PERSON SHALL
10 AFFIRM TO THE DEPARTMENT AT EACH RENEWAL OF THE DRIVER LICENSE OR
11 NONOPERATING IDENTIFICATION LICENSE THAT THE MEDICAL INDICATOR REMAINS IN
12 EFFECT FOR THE LICENSEE.]

13 C. THE DEPARTMENT SHALL PROVIDE ON EACH DRIVER LICENSE AND ON EACH
14 NONOPERATING IDENTIFICATION LICENSE A SPACE WHERE A LICENSEE MAY INDICATE
15 THAT THE LICENSEE HAS [AN ADVANCED HEALTH CARE DIRECTIVE, INCLUDING A
16 HEALTH CARE POWER OF ATTORNEY AS PRESCRIBED BY TITLE 36, CHAPTER 32,
17 ARTICLE 2,] A PREHOSPITAL MEDICAL CARE DIRECTIVE [BY USING AN ORANGE
18 SYMBOL PRESCRIBED BY THE DEPARTMENT PURSUANT TO SUBSECTION D OF THIS
19 SECTION IF THE LICENSEE PROVIDES PROOF TO THE DEPARTMENT OF A PREHOSPITAL
20 MEDICAL CARE DIRECTIVE] THAT FULFILLS THE REQUIREMENTS OF TITLE 36,
21 CHAPTER 32, ARTICLE 4~~[, A LIVING WILL AS PRESCRIBED BY TITLE 36, CHAPTER~~
22 32, ARTICLE 5 OR A MENTAL HEALTH CARE POWER OF ATTORNEY AS PRESCRIBED BY
23 TITLE 36, CHAPTER 32, ARTICLE 6]. ~~[EXCEPT FOR THE PURPOSES OF ENTERING~~
24 ~~THE INDICATOR ON THE DRIVER LICENSE OR NONOPERATING IDENTIFICATION~~
25 ~~LICENSE, THE DEPARTMENT MAY NOT MAINTAIN ANY DOCUMENT PROVIDED PURSUANT TO~~
26 ~~THIS SUBSECTION IN THE DEPARTMENT'S COMPUTER RECORDS AFTER THE DEPARTMENT~~
27 ~~ISSUES THE DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE.]~~ THE
28 DEPARTMENT IS NOT REQUIRED TO ACCEPT OR INTERPRET MEDICAL CARE DIRECTIVES
29 THAT DO NOT MEET THE REQUIREMENTS OF TITLE 36, CHAPTER 32~~[, ARTICLE 4].~~
30 THE LICENSEE SHALL AFFIRM TO THE DEPARTMENT AT EACH RENEWAL OF THE DRIVER
31 LICENSE OR NONOPERATING IDENTIFICATION LICENSE THAT [AN ADVANCED HEALTH
32 CARE DIRECTIVE,] A PREHOSPITAL MEDICAL CARE DIRECTIVE[, A LIVING WILL OR A
33 MENTAL HEALTH CARE POWER OF ATTORNEY] REMAINS IN EFFECT FOR THE LICENSEE.

34 ~~[D. THE DEPARTMENT SHALL PRESCRIBE BY RULE AN ORANGE SYMBOL TO~~
35 ~~IDENTIFY THE PREHOSPITAL MEDICAL CARE DIRECTIVE. THE DEPARTMENT SHALL~~
36 ~~MAINTAIN THE PREHOSPITAL MEDICAL CARE DIRECTIVE IN THE DEPARTMENT'S~~
37 ~~COMPUTER RECORDS AFTER THE DEPARTMENT ISSUES THE DRIVER LICENSE OR~~
38 ~~NONOPERATING IDENTIFICATION LICENSE. EXCEPT FOR THE PURPOSE OF INDICATING~~
39 ~~THE ORANGE SYMBOL ON THE DRIVER LICENSE OR NONOPERATING IDENTIFICATION~~
40 ~~LICENSE, AND UNLESS THE LICENSEE AFFIRMATIVELY REQUESTS IN WRITING THAT~~
41 ~~THE LICENSEE WANTS THE PREHOSPITAL MEDICAL CARE DIRECTIVE AS PART OF THE~~
42 ~~COMPUTER RECORDS, THE DEPARTMENT MAY NOT MAINTAIN THE PREHOSPITAL MEDICAL~~
43 ~~CARE DIRECTIVE IN THE DEPARTMENT'S COMPUTER RECORDS AFTER THE DEPARTMENT~~
44 ~~ISSUES THE DRIVER LICENSE OR NONOPERATING IDENTIFICATION LICENSE.]~~

45 ~~E. [F.] [D.]~~ The department and this state are exempt from
46 liability for damages from the use of ~~[medical code OR PREHOSPITAL MEDICAL~~

1 ~~CARE DIRECTIVE~~ [INDICATOR] information provided on a license pursuant to
2 this section.

3 Sec. 3. Section 36-3251, Arizona Revised Statutes, is amended to
4 read:

5 36-3251. Prehospital medical care directives; form; effect;
6 immunity; definitions

7 A. Notwithstanding any law or a health care directive to the
8 contrary, a person may execute a prehospital medical care directive that,
9 in the event of cardiac or respiratory arrest, directs the withholding of
10 cardiopulmonary resuscitation by emergency medical system personnel,
11 hospital emergency department personnel and, as provided in subsection L
12 of this section, direct care staff persons. For the purposes of this
13 article, "cardiopulmonary resuscitation" includes cardiac compression,
14 endotracheal intubation and other advanced airway management, artificial
15 ventilation, defibrillation, administration of advanced cardiac life
16 support drugs and related emergency medical procedures. Authorization for
17 the withholding of cardiopulmonary resuscitation does not include the
18 withholding of other medical interventions, such as intravenous fluids,
19 oxygen or other therapies deemed necessary to provide comfort care or to
20 alleviate pain.

21 B. A prehospital medical care directive shall be printed on an
22 orange background and may be used in either letter or wallet size. The
23 directive shall be in the following form:

24 Prehospital Medical Care Directive

25 (side one)

26 In the event of cardiac or respiratory arrest, I refuse
27 any resuscitation measures, including cardiac compression,
28 endotracheal intubation and other advanced airway management,
29 artificial ventilation, defibrillation, administration of
30 advanced cardiac life support drugs and related emergency
31 medical procedures.

32 Patient: _____ date: _____

33 (Signature or mark)

34 Attach recent photograph here or provide all of the
35 following information below:

36 Date of birth _____ sex _____

37 Eye color _____ hair color _____ race _____

38 Hospice program (if any) _____

39 Name and telephone number of patient's physician
40 _____

41 (side two)

42 I have explained this form and its consequences to the
43 signer and obtained assurance that the signer understands that
44 death may result from any refused care listed above.

45 _____ date _____

46 (Licensed health care provider)

1 I was present when this was signed (or marked). The
2 patient then appeared to be of sound mind and free from
3 duress.

4 _____ date _____

5 (Witness)

6 C. A person who has a valid prehospital medical care directive
7 pursuant to this section may wear an identifying bracelet on either the
8 wrist or the ankle. The bracelet shall be substantially similar to
9 identification bracelets worn in hospitals. The bracelet shall be on an
10 orange background and state the following in bold type:

11 Do Not Resuscitate

12 Patient: _____

13 Patient's physician: _____

14 D. If the person has designated an agent to make health care
15 decisions under section 36-3221 or has been appointed a guardian for
16 health care decisions pursuant to title 14, that agent or guardian shall
17 sign if the person is no longer competent to do so.

18 E. A prehospital medical care directive is effective until it is
19 revoked or superseded by a new document.

20 F. Emergency medical system personnel, hospital emergency
21 department personnel[,] [~~and~~] direct care staff persons [AND ANY CIVILIAN
22 BYSTANDERS] who make a good faith effort to identify the patient and who
23 rely on an apparently genuine directive, [~~AN ORANGE SYMBOL INDICATED~~] [AN
24 INDICATOR AS PRESCRIBED IN SECTION 28-3167] ON THE PATIENT'S DRIVER
25 LICENSE OR NONOPERATING IDENTIFICATION LICENSE or a photocopy of a
26 directive on orange paper are immune from liability to the same extent and
27 under the same conditions as prescribed in section 36-3205. If a person
28 has any doubt as to the validity of a directive or the medical situation,
29 that person shall proceed with resuscitative efforts as otherwise required
30 by law. Emergency medical system personnel and direct care staff persons
31 are not required to accept or interpret medical care directives that do
32 not meet the requirements of this section.

33 G. In the absence of a physician, a person without vital signs who
34 is not resuscitated pursuant to a prehospital medical care directive may
35 be pronounced dead by any peace officer of this state, a professional
36 nurse licensed pursuant to title 32, chapter 15 or an emergency medical
37 technician certified pursuant to this title.

38 H. This section does not apply to situations involving mass
39 casualties or to medical emergencies involving children and adults with
40 disabilities in public or private schools that are not licensed health
41 care institutions as defined in section 36-401.

42 I. After being notified of a death by emergency medical system
43 personnel, the person's physician or the county medical examiner is then
44 responsible for signing the death certificate.

45 J. The office of emergency medical services in the department of
46 health services shall print prehospital medical care directive forms and
47 make them available to the public. The department may charge a fee that

1 covers the department's costs to prepare the form. The department and its
2 employees are immune from civil liability for issuing prehospital medical
3 care directive forms that meet the requirements of this section. A person
4 may use a form that is not prepared by the department of health services
5 if that form meets the requirements of this section. If an organization
6 distributes a prehospital medical care directive form that meets the
7 requirements of this section, that organization and its employees are also
8 immune from civil liability.

9 K. Any prehospital medical care directive prepared before April 24,
10 1994 is valid if it was valid at the time it was prepared.

11 L. A direct care staff person may comply with a prehospital medical
12 care directive pursuant to this section if the physician of the person who
13 has the valid prehospital medical care directive has ordered a hospice
14 plan of care.

15 M. The department of economic security or the Arizona health care
16 cost containment system administration may prescribe guidance for training
17 and education of direct care staff persons regarding the requirements of
18 this section.

19 N. For the purposes of this section:

20 1. "Direct care staff person" means a person who is employed or
21 contracted to provide direct services pursuant to title 36, chapter 5.1.

22 2. "Emergency medical system personnel" includes emergency medical
23 technicians at all levels who are certified by the department of health
24 services and medical personnel who are licensed by this state and who are
25 operating outside of an acute care hospital under the direction of an
26 emergency medical system agency recognized by the department of health
27 services.

28 <<Sec. 4. Legislative intent
29 [The legislature intends that the department of transportation
30 coordinate with the Arizona health care directives registry established
31 pursuant to section 36-3291, Arizona Revised Statutes, to implement this
32 act and to advance public awareness of advanced health care directives and
33 the Arizona health care directives registry.]>>

34 <<Sec. 5. Effective date
35 [This act is effective from and after December 31, 2026.]>>

36 Enroll and engross to conform
37 Amend title to conform

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